

[*178] the father is dead (*j*), or of a nephew * who had been adopted as a son (*a*); but it seems that the advancement will not be presumed in favour of a more remote relation, and *a fortiori* not of a stranger, though the real purchaser may have placed himself *loco parentis* (*b*).

[13. **Case of investment in joint names of purchaser, his wife, and strangers.**—The doctrine of advancement has been applied to the case of an investment by a husband in the joint names of himself, his wife, and strangers (*c*).]

14. **Case of a mother.**—The cases of advancement are generally those of a father, but [the question has arisen on several occasions whether the principle is applicable as between mother and child, and has given rise to some difference of opinion, but, on the balance of the authorities as well as on principle, it would seem that the true rule is, that, as a Court of Equity recognizes no such obligation according to the rules of equity in a mother to provide for her child as exists in the case of a father, the mere purchase or investment in the name of the child is not sufficient *per se* to raise a presumption of advancement, but there must be some evidence of intention on the part of the mother, either to place herself *in loco parentis* or to advance the child, to entitle the child to the property. However, very slight evidence of intention is sufficient, there being very little additional motive required beyond the relationship to induce a mother to make a gift to her child (*d*); and the principle] does not apply to a *step-mother* (*e*).

15. **Purchase-money not paid, a debt from parent.**—Where the purchase is held to be an advancement, and the purchase-

(*j*) *Ebrand v. Dancer*, 2 Ch. Ca. 26; and see *Loyd v. Read*, 1 P. W. 607; *Currant v. Jago*, 1 Coll. 265, note (*c*); *Tucker v. Burrow*, 2 H. & M. 525; *Fowkes v. Pascoe*, 10 L. R. Ch. App. 343.

(*a*) *Currant v. Jago*, 1 Coll. 261.

(*b*) See *Tucker v. Burrow*, 2 H. & M. 515; but see the analogous class of cases in reference to double portions, *Powys v. Mansfield*, 3 My. & Cr. 359, &c.

[(*c*) *Re Eykyn's Trusts*, 6 Ch. D. 115.]

[(*d*) *Re De Visme*, 2 De G. J. & Sm. 17; *Bennet v. Bennet*, 10 Ch. D. 474; *Re Orme*, 50 L. T. N. S. 51; but see *Sayre v. Hughes*, 5 L. R. Eq. 376; *Batsone v. Salter*, 10 L. R. Ch. App. 431.]

(*e*) *Todd v. Moorhouse*, 19 L. R. Eq. 69.